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**Promotion and protection of all human rights, civil,
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including the right to development**

Visit to Brazil

Report of the Special Rapporteur on contemporary forms of slavery, including its causes and consequences, Tomoya Obokata*

Summary

The present report of the Special Rapporteur on contemporary forms of slavery, including its causes and consequences, is submitted pursuant to Human Rights Council resolution 51/15. The Special Rapporteur visited Brazil from 18 to 29 August 2025. Following an analysis of the legal and institutional framework and of the existing institutional architecture to combat contemporary forms of slavery in the country, the Special Rapporteur examined challenges faced by those at particular risk of contemporary forms of slavery, including children, Indigenous Peoples and Quilombola communities, people of African descent, migrants, refugees, domestic workers, LGBTIQ+ persons and sex workers, all facing intersecting forms of discrimination. The Special Rapporteur acknowledges that the Government of Brazil, with the support of survivors, civil society organizations, workers' organizations and other stakeholders has made significant progress in preventing and combating contemporary forms of slavery over the past years. The report concludes with a set of recommendations to assist the Government and other stakeholders in addressing the remaining gaps identified.

* The summary of the report is being circulated in all official languages. The report itself, which is annexed to the summary, is being circulated in the language of submission only.



Annex

Report of the Special Rapporteur on contemporary forms of slavery, including its causes and consequences, Tomoya Obokata, on his visit to Brazil

I. Introduction

1. The Special Rapporteur on contemporary forms of slavery, including its causes and consequences, conducted an official visit to Brazil from 18 to 29 August 2025 at the invitation of the federal Government. The purpose of his visit was to assess the efforts undertaken by the Government of Brazil in preventing and addressing contemporary forms of slavery. To this end, the Special Rapporteur aimed to identify encouraging practices and ongoing challenges.

2. The Special Rapporteur visited Brasília, São Paulo, Marabá, Belo Horizonte and Rio de Janeiro. He met with a broad range of stakeholders, including civil servants of the federal and state authorities, representatives of the justice system, victims/survivors of contemporary forms of slavery, workers, human rights defenders, migrants, refugees, civil society representatives, businesses, academic experts and members of the United Nations country team. The Special Rapporteur extends his appreciation to the federal Government for its invitation, openness, full cooperation and constructive dialogue. He also wishes to express his sincere gratitude to all interlocutors who engaged with him before, during and after the visit.

II. Background and cross-cutting considerations

3. Contemporary forms of slavery in Brazil are driven by a complex combination of structural, socioeconomic, historical and institutional factors. Deep social inequality and persistent poverty leave many individuals – especially in rural and marginalized communities – with few viable livelihood options, making them vulnerable to deceptive recruitment practices and exploitative labour conditions. The demand for cheap labour in sectors such as agriculture and agribusiness, mining, the garment industry, domestic work, logging and cattle ranging, construction and charcoal production incentivizes employers to cut costs through illegal practices. Inadequate enforcement of criminal and labour laws, corruption and insufficient resources and capacities for inspections allow these conditions to persist with relative impunity. Internal migration also plays a role, as workers moving from poorer regions to other areas often face isolation and dependence on employers for housing and transportation, increasing the risk of exploitation. Together, these factors create an environment in which contemporary forms of slavery can continue to exist despite legal prohibitions.

4. These structural vulnerabilities are further intensified by regional inequalities and historical patterns of land concentration that limit economic opportunities for large segments of the population. In Brazil, unequal land distribution and insecure land tenure systems often force rural workers into precarious livelihoods, increasing their susceptibility to exploitative labour arrangements. Informality in the labour market – where workers lack contracts, legal protections and access to social security – creates conditions in which abuse can occur without accountability.

5. Intersecting forms of discrimination based on race, gender and ethnicity disproportionately affect Afro-Brazilian, Quilombola and Indigenous communities in Brazil, contributing to their exclusion from formal employment and public services and increasing their vulnerability to exploitation. Environmental degradation, particularly deforestation, land-grabbing, illegal mining, environmental contamination caused by pesticides, and other extractive activities, especially in the Amazon region, further exacerbate these inequalities by displacing traditional populations, destroying subsistence economies and pushing individuals to migrate in search of work under precarious and often exploitative conditions.

In this context, there is a clear link between environmental harm and contemporary forms of slavery, as forced labour is frequently embedded in these illegal and destructive practices, which lead to severe pollution and the degradation of ecosystems to the point of making entire regions uninhabitable. These dynamics disproportionately affect Indigenous Peoples, Quilombola communities, people of African descent and riverside populations, who are sometimes forcibly displaced or even expelled from legally demarcated lands intended to protect their rights. At the same time, land-grabbing is often facilitated through the collusion of corrupt municipal and state authorities who help to legalize ownership of illegally acquired land, while human rights defenders who oppose these activities face threats, violence and serious protection risks, often without adequate safeguards.

6. Moreover, limited state presence in remote areas, combined with insufficient labour inspections and barriers to accessing justice, allows exploitative practices to persist. Debt bondage, coercion and degrading working conditions are more likely to arise where workers have little bargaining power and few alternatives. Together, these interconnected factors reinforce cycles of vulnerability and exploitation, enabling contemporary forms of slavery to endure despite the country's strong legal and institutional frameworks.

7. Furthermore, contemporary forms of slavery in Brazil manifest clearly along racial and gendered lines. This originated in the country's legacies of slavery and colonialism, which shaped enduring patterns of inequality, land concentration and racialized labour exploitation. The colonial economy was built on slave labour performed by Africans, including on large estates, embedding social hierarchies that persisted beyond the formal abolition of slavery in 1888. The abolition occurred without meaningful land reform; to date, no comprehensive restorative justice process specifically addressing slavery and colonialism has been undertaken in the country.

III. Legal and institutional frameworks

A. International treaties and external engagements

8. Brazil has ratified or acceded to core human rights instruments, including the Convention against Torture and Other Cruel, Inhuman or Degrading Treatment or Punishment, the International Convention for the Protection of All Persons from Enforced Disappearance, the International Covenant on Economic, Social and Cultural Rights, the International Covenant on Civil and Political Rights, the International Convention on the Elimination of All Forms of Racial Discrimination, the Convention on the Elimination of All Forms of Discrimination against Women, the Convention on the Rights of the Child, the Convention on the Rights of Persons with Disabilities, the Slavery Convention,¹ the Supplementary Convention on the Abolition of Slavery, the Slave Trade, and Institutions and Practices Similar to Slavery, the United Nations Convention against Transnational Organized Crime and the Protocol to Prevent, Suppress and Punish Trafficking in Persons, Especially Women and Children, supplementing the United Nations Convention against Transnational Organized Crime. At the time of the visit, Brazil had not ratified or acceded to the International Convention on the Protection of the Rights of All Migrant Workers and Members of Their Families.

9. Brazil has ratified 8 of the 10 fundamental instruments of the International Labour Organization (ILO) and three of the four ILO governance (priority) instruments: the Forced Labour Convention, 1930 (No. 29); the Right to Organise and Collective Bargaining Convention, 1949 (No. 98); the Equal Remuneration Convention, 1951 (No. 100); the Abolition of Forced Labour Convention, 1957 (No. 105); the Discrimination (Employment and Occupation) Convention, 1958 (No. 111); the Minimum Age Convention, 1973 (No. 138); the Occupational Safety and Health Convention, 1981 (No. 155); the Worst Forms of Child Labour Convention, 1999 (No. 182); the Labour Inspection Convention, 1947 (No. 81); the Employment Policy Convention, 1964 (No. 122); and the Tripartite

¹ Brazil has not ratified the Protocol amending the Slavery Convention signed at Geneva on 25 September 1926.

Consultation (International Labour Standards) Convention, 1976 (No. 144). Furthermore, Brazil is a pathfinder country² under Alliance 8.7.

B. Overall legal framework and domestic criminal justice system

1. Legislative and policy frameworks

10. Brazil has strong legal and policy frameworks to address contemporary forms of slavery. For example, article 149 of the Brazilian Criminal Code of 1940 prohibits the subjection of persons to conditions analogous to slavery, which covers, among other things, forced labour, exhausting workdays, degrading working conditions, and restriction of a worker's freedom of movement due to debt contracted with the employer or agent. Trafficking in persons is also proscribed under article 149-A of the same Code

11. Aside from criminal law provisions, the Constitution of Brazil of 1988 (art. 7 (XXXIII)) and the Labour Code of 1943 (art. 403) prohibit child labour for minors under the age of 16,³ and the statute for children and adolescents of 1990 establishes a comprehensive child-protection framework that prohibits commercial sexual exploitation. Furthermore, the Civil Code of 2002 regulates marriage whereby a marriage for minors under the age of 16 remains illegal, although those aged between 16 and 17 can still legally marry with the consent of a parent or legal guardian.

12. Brazil also has national policies on contemporary forms of slavery in place. The first National Action Plan for the Eradication of Slave Labour was adopted in 2003, and the third version was approved by the National Commission for the Eradication of Slave Labour on 28 January 2026, following a participatory drafting process, and is currently undergoing internal procedures for publication. Under the plan, multi-stakeholder actions are coordinated through partnerships among federal and state authorities and civil society. The plan is a cornerstone of the country's human rights and labour policy agenda, and the Special Rapporteur was informed that the latest version was being finalized as of the writing of the present report. The fourth National Plan to Combat Trafficking in Persons (2024–2027) was launched in July 2024 and is designed to guide federal, state and local strategies.⁴ Furthermore, Brazil had a National Plan for the Eradication of Child Labour in place from 2021 to 2025, aimed at the elimination of the worst forms of child labour by 2025 and all forms of child labour by 2030.

13. In 2025, Brazil resumed federal co-financing for the Strategic Actions of the Programme for the Eradication of Child Labour, strengthening the national, intersectoral and inter-federative policy for the prevention, identification and eradication of child labour, including its worst forms. Current co-financing reportedly reaches 1,038 federative entities, including 1,011 municipalities, the 26 states and the Federal District, with annual federal investment of 72 million reais. The Programme is structured around five axes: information and social mobilization; identification of cases; social protection; defence and accountability; and monitoring. Resolution No. 204/2025, issued by the National Council for Social Assistance and the ministry responsible for social development, establishes the eligibility and resource-sharing criteria for the federal co-financing of the Strategic Actions of the Programme for the Eradication of Child Labour. It provides states, municipalities and the Federal District with guidance on funding to combat child labour across Brazil and defines priority target groups, including children and adolescents living on the streets or in degraded areas used as places of residence and for livelihoods; adolescents placed in socioeducational programmes as a result of acts constituting child labour; children and adolescents in contexts requiring social assistance, including migrants, refugees and those affected by climate events and environmental crimes; children and adolescents engaged in

² See <https://www.alliance87.org/pathfinders>.

³ Article 7 of the Constitution prohibits any work for minors under 16, except as apprentices, starting at 14 years of age, and also prohibits night work, dangerous or unhealthy work for minors under the age of 18.

⁴ See <https://www.gov.br/mj/pt-br/assuntos/sua-protecao/trafico-de-pessoas/cartilha-iv-plano-nacional-de-enfrentamento-ao-trafico-de-pessoas-4.pdf>.

digital child labour; specific traditional peoples and communities; children and adolescents subjected to sexual exploitation; and territories with the highest incidence of child labour.

14. Lastly, the Federal Government established the Black Youth Alive Plan, developed through a national participatory process and structured around intersectoral pillars. Under goal 11 of the Plan, on ensuring dignity in labour relations and combating slave labour, actions are envisaged to expand labour inspections, to receive and address complaints related to slave labour, including domestic work, and to combat informality in the domestic sector.

2. Institutional frameworks

15. There are several intergovernmental bodies aimed at eradicating contemporary forms of slavery in Brazil. The National Commission for the Eradication of Slave Labour was established in 2003. It brings together several ministries and civil society organizations, and its main tasks are to coordinate actions against slave labour among relevant public authorities and to monitor the implementation of the National Plan for the Eradication of Slave Labour and related policies. At the state level, commissions to combat slave labour have been established and are active in 17 states; in other States, such commissions have not been created or remain inactive in practice.⁵ Other bodies include the National Committee to Combat Trafficking in Persons and the National Commission for the Eradication of Child Labour.⁶ The National Forum for the Prevention and Eradication of Child Labour, a core multi-stakeholder forum, also promotes the elimination of child labour in the country.⁷

16. Brazil has a strong system of labour enforcement and justice, with dedicated institutions. The Special Mobile Inspection Group, coordinated by the Ministry of Labour and Employment, brings together the Public Labour Prosecution Office, the Federal Police, the federal prosecution service and the Federal Public Defender's Office. The Group is a positive example of inter-institutional coordination: inspectors, the police, public defenders, federal prosecutors and other relevant actors work collaboratively to identify instances of contemporary forms of slavery and to rescue victims and promote their reintegration into society. It also coordinates with other entities, such as the Brazilian Institute for the Environment and Renewable Natural Resources, the Chico Mendes Institute for Biodiversity Conservation and the National Foundation for Indigenous Peoples. Since its inception in 1995, the Special Mobile Inspection Group has rescued more than 66,000 victims.⁸ Over time, the exchange of expertise within the Group has enabled the decentralization of enforcement capacity, allowing regional and state-level labour inspectorates to assume a leading role in routine inspections and rapid responses. As a result, while most inspections are now carried out at the regional level, the Group continues to play a crucial role in addressing cases involving higher risks or complex logistics, or where enhanced coordination is needed.

17. The Public Labour Prosecution Office is also an integral part of the labour enforcement and justice system. It houses the national coordinating office for the eradication of slave labour and the combating of trafficking in persons, with national and regional coordinators. The Public Labour Prosecution Office participates in field operations led by the Labour Inspectorate and subsequently pursues legal measures, including public civil lawsuits to secure individual or collective remedies. It also draws up conduct adjustment agreements, which can impose obligations such as the payment of compensation and the implementation of human rights due diligence by businesses.

18. In addition, the labour courts have the jurisdiction to hear labour disputes between employers and employees, including those involving labour rights violations that may amount to contemporary forms of slavery. The judges of the labour courts have specialized training, and the courts can also enforce conduct adjustment agreements in cases where companies fail to fulfil their stipulated obligations. Furthermore, the Federal Public

⁵ See <https://www.gov.br/mdh/pt-br/assuntos/noticias/2024/dezembro/ministerio-publica-relatorio-que-destaca-o-papel-das-comissoes-estaduais-na-erradicacao-do-trabalho-escravo> (in Portuguese).

⁶ See <https://www.gov.br/trabalho-e-emprego/pt-br/aceso-a-informacao/participacao-social/conselhos-e-orgaos-colegiados/conaeti> (in Portuguese).

⁷ See <https://fnpeti.org.br/oqueoeforum/> (in Portuguese).

⁸ According to data received by the Special Rapporteur as at 26 August 2025.

Defenders' Office is mandated under the Constitution (art. 134) to provide free legal advice to victims of human rights violations, including contemporary forms of slavery. The Office has ombudsman and advocacy functions, as well as working groups on contemporary forms of slavery and trafficking in persons, with defenders dedicated to working in those areas.

IV. Main challenges faced by populations at particular risk of exploitation

A. Sexual, labour and criminal exploitation of children

19. The Special Rapporteur is seriously concerned that children in Brazil continue to be drawn into child labour, many at a very young age. According to the most recent official statistics, approximately 1.65 million children were subjected to child labour in 2024,⁹ although underreporting is estimated to be significant. Of these, an estimated 500,000 children are exploited in the worst forms of child labour, in sectors such as agriculture, livestock, mining, charcoal production, street vending, waste picking and domestic work. Instances of criminal exploitation of children, where they are enticed or forced to commit criminal activities such as drug trafficking, have also been reported.

20. Interlocutors also expressed concern regarding the trafficking of children for purposes of commercial sexual exploitation. This reportedly occurs in metropolitan areas, around extractive industries, including mining sites, and in tourist areas. Children of African descent and Indigenous, migrant and LGBTQI+ children face particular risks of falling prey to commercial sexual exploitation. The Special Rapporteur was informed that child protection agencies and custody councils are non-existent or not operational in many areas where sexual exploitation take place, leaving significant protection gaps.

21. Moreover, sexual exploitation of children in the digital space has also been highlighted as a rapidly increasing concern. At the time of the visit, debates regarding new legislation were under way. In the meantime, the digital statute for the protection of children and adolescents, often referred to as ECA Digital, was signed into law shortly after the visit of the Special Rapporteur, on 17 September 2025. Its purpose includes establishing new protections for children and adolescents in the digital environment and is an example of promising practices to address the new forms of sexual exploitation among children.

22. In addition, the rate of early and child marriage continues to be significant in parts of Brazil, particularly in the north and north-east regions of the country. According to the United Nations Children's Fund (UNICEF), in 2022, around 21.6 million girls and women had been a child bride and one in four girls had married before reaching 18 years of age.¹⁰ Poverty, gender and socioeconomic inequality, domestic and gender-based violence, a culture of acceptance and insufficient access to education and healthcare are among the key causes that lead to child marriage. It is also often linked to other contemporary forms of slavery, such as domestic servitude and sexual exploitation, disproportionately affecting girls. These factors restrict personal freedom and reinforce traditional gender roles, trapping many girls in cycles of poverty and inequality that can continue across generations.

B. People of African descent, Indigenous Peoples and Quilombola and other ethnic groups

23. In Brazil, contemporary forms of slavery are closely linked to the legacies of colonialism and the transatlantic trade in enslaved Africans. People of African descent constitute over 80 per cent of those rescued from contemporary forms of slavery in the country. Persistent racial discrimination, extreme land concentration and the predominance of agro-industrial interests in national politics continue to fuel structural inequality,

⁹ See <https://agenciadenoticias.ibge.gov.br/en/agencia-news/2184-news-agency/news/44550-brazil-had-1-650-million-children-and-teenagers-in-child-labor-conditions-in-2024>.

¹⁰ See <https://data.unicef.org/resources/child-marriage-country-profiles/>.

vulnerability and labour exploitation. Indigenous Peoples are also highly vulnerable to labour exploitation. Reports of Indigenous and other women and girls being sexually exploited, particularly in and around mining sites, were received.

24. During the visit, the Special Rapporteur met with people of African descent, with Indigenous Peoples and with representatives of Quilombola and riverside communities. According to the persons with whom he spoke, delays in land demarcation have left Indigenous and Quilombola communities without formal legal recognition of their traditional territories, which exposes them to exploitation and to many other human rights violations.

25. Without secure land titles, these groups face encroachment by loggers, miners, agribusiness and criminal actors, such as drug traffickers. Land-grabbing is a serious concern, particularly in the Amazon region, where outsiders fraudulently claim or forcibly occupy land. This has led to deforestation, environmental degradation and loss of biodiversity in territories that these communities have traditionally protected. This situation has also triggered violent conflicts, displacement and threats to cultural survival, as livelihoods tied to the land – such as subsistence farming and hunting – and spiritual practices are disrupted. Due to their marginalization, these communities often struggle to access basic services, such as education and healthcare. They also face significant barriers in accessing justice, while impunity for land-grabbers further entrenches inequality and undermines Indigenous and Quilombola rights.

26. The Special Rapporteur also observed that business interests are often prioritized over the human rights of the populations that have traditionally inhabited the land concerned. Interlocutors emphasized that access to land tenure is essential to secure their livelihoods, preserve cultural practices and prevent contemporary forms of slavery. To date, however, the steps the Government has taken to dismantle the powerful structures that threaten populations and the environment, particularly in the Amazon region, have been insufficient. There is also an urgent need to eliminate corruption among government officials who benefit from the criminal networks operating in the region. Reports have been received of government officials allegedly issuing environmental licences to businesses despite clear human rights and environmental risks emanating from the respective business activities, including mining.

27. A major obstacle for the demarcation of traditional territories is the continued application of the temporal framework (“*marco temporal*”) doctrine based on Law No. 14.701/2023, even though the Supreme Court declared the doctrine to be unconstitutional in September 2023. The unconstitutionality of the doctrine was reaffirmed by the Supreme Court in subsequent key judgments,¹¹ generating a legal impasse with regard to agribusiness. The Special Rapporteur is acutely concerned about the application of the doctrine, as only those lands that were occupied by Indigenous Peoples at the time of the adoption of the current Constitution, in 1988, are considered eligible for demarcation.

28. The Special Rapporteur met with Quilombola women and men who migrate seasonally from their communities to work on coffee and other plantations across the country due to the lack of viable livelihoods and just and favourable conditions of work in their territories. Many also face limited access to water, sanitation and education; degrading living conditions caused by environmental damage from extractive activities; and insufficient infrastructure, including electricity and essential public services. These factors push workers to migrate for several months a year to other regions of the country; the workers are often forced to leave their families behind. Women and girls migrate to urban areas for domestic work; many expressed a strong preference to remain in their communities, indicating they would do so if local income-generating opportunities were available.

29. The Special Rapporteur welcomes the recognition by the Government of the historical roots of slavery, including its links to colonialism and the transatlantic slave trade, and the steps taken to address this legacy. In this regard, he notes the establishment of the Ministry of Racial Equality, mandated to promote racial and ethnic equality and eliminate racism, including through enhanced access to economic, social and cultural rights for people of African descent and other racially marginalized groups. He was also encouraged by the

¹¹ See <https://noticias.stf.jus.br/posts/noticias/stf-considera-inconstitucional-trecho-de-lei-que-institui-marco-temporal-para-terras-indigenas>.

establishment of the Ministry of Indigenous Peoples by the current Government and by the institutionalization of anti-racial discrimination efforts through affirmative action programmes facilitating access to higher education and public sector employment.

30. However, many stakeholders stressed the urgent need for increased investment in education, healthcare, just and favourable conditions of work and essential public services, particularly in remote and rural areas where many people of African descent and members of Quilombola communities and Indigenous Peoples reside, in order to prevent their exploitation in contemporary forms of slavery. This would reduce the need for internal migration, which often carries significant social and familial costs. The Special Rapporteur urges authorities at the local, state and federal levels to increase the allocation of resources at the local level while ensuring the meaningful participation of the communities affected.

C. Migrants, refugees and asylum-seekers

31. Brazil has solid legislative frameworks with regard to migrants, asylum-seekers and refugees. The Migration Law (Law No. 13.445/2017) is a key piece of legislation in this regard. It recognizes migrants as subjects of rights, including the rights to equal labour protections, to comprehensive legal assistance, to form and join trade unions and associations, to access to public health, to social assistance services and social security, and to access public education. It also provides for the prohibition and prevention of xenophobia, racism and all forms of discrimination. The Special Rapporteur was informed that refugees and asylum-seekers have the right to work and enjoy other rights and benefits, which is very encouraging.

32. Nevertheless, significant challenges persist, as migrants and refugees of diverse nationalities, including Bolivians, Paraguayans, Haitians, Venezuelans, Peruvians, Argentinians, Senegalese, Congolese and Angolans, are subjected to contemporary slavery in both urban and rural areas. They work mainly in sectors such as the textile industry, informal street vending, car washing, construction, waste picking, meat processing and other precarious urban services, agriculture and cattle raising, where informal working conditions, low wages, coercion and other abusive working conditions, sexual harassment, violence and racism prevail. In the textile industry, for example, Bolivian women whom the Special Rapporteur met during the visit reported working 10- to 14-hour shifts in sweatshops for only US\$0.55 to US\$1 per item, often while being forced to live inside the factories in highly unsuitable conditions. Child labour and instances of sexual exploitation and abuse among migrant children were also reported, but there do not seem to be safe, effective channels available to report human rights abuses taking place in these settings.

33. Ongoing discrimination, difficulties in accessing formal employment, adequate housing and basic services, language and cultural barriers, and lack of information increase the vulnerability of migrants, asylum-seekers and refugees to exploitation. Insufficient human rights awareness and intercultural understanding among local civil servants and law enforcement officials also contribute to increased vulnerability. Some employers reportedly exploit the vulnerability of migrants in irregular situations through coercion, exploitation and control. Administrative documentation processes were described as costly, slow and inconsistent across states, with reports of month-long or even year-long delays in the issuance of refugee recognition documents and refusals to renew migrant documentation.

34. Civil society organizations and migrant and refugee communities from countries of origin frequently step in to provide social welfare and documentation services in place of the State. However, they themselves are severely underfunded and many migrants and refugees remain without any support. The need for broader policy engagement between the Government and these communities and civil society was highlighted. The absence of a national survey on the situation of migrants and refugees in relation to contemporary forms of slavery perpetuates statistical invisibility and hinders the development of effective prevention and protection policies for these groups.

D. Domestic workers

35. Many women and girls working in private households experience servitude. Domestic work is predominantly undertaken by women and girls of African descent and by Indigenous and migrant women. The Special Rapporteur received reports that many women and girls subjected to such labour exploitation are also subjected to sexual harassment, exploitation and violence. In the most severe cases, individuals have been forced to work from childhood and have spent decades confined within private households in conditions of domestic servitude. In this regard, the Special Rapporteur met the family of Sônia Maria de Jesus, who had experienced servitude for over 40 years – since the age of 8. Looking into the case, the Public Labour Prosecution Office and other stakeholders documented decades of unpaid labour, degrading living conditions, social isolation and denial of access to education and healthcare. A rescue took place on 6 June 2023; however, the Superior Court of Justice authorized Sônia’s return to the perpetrators’ household. The Special Rapporteur is alarmed by this situation and regrets the lack of corrective measures; in that regard, he also draws attention to the joint allegation letter dated 21 February 2025 addressed to the Government by United Nations special procedure mandate holders.¹²

36. At the same time, the “uberization” of domestic work is becoming increasingly prominent in Brazil, with workers recruited through digital technologies such as smartphone applications. While some of the applications help ensure clear, transparent working conditions, the contractual terms set out on the application may not always be sufficiently clear or comprehensive. Moreover, they may be challenging to understand for migrant women, due to language barriers, or for illiterate workers. In practice, domestic workers may also be pressured to work longer hours than agreed in the application, fearing dismissal or other consequences if they refuse. Interlocutors have stressed the need for tighter regulation to prevent exploitation and abuse, including sexual abuse, of domestic and other platform workers.

37. From a legal perspective, *diaristas* (day labourers working up to two days per week) and *mensualistas* (monthly workers) are treated differently. While Complementary Law No. 150/2015 extended several rights to domestic workers, day labourers – who reportedly constitute nearly half of the domestic workforce nationwide – are excluded from core labour protections, are often not provided with contracts and have limited access to social benefits compared to monthly workers. Although Constitutional Amendment No. 72/2013 established the right to workplace safety for domestic workers, the relevant standards have yet to be issued.

38. Another issue is that to be eligible for unemployment benefits, domestic workers must have worked at least 15 continuous months over the previous two years. Even then, they are entitled to only three months of benefits in case of unemployment, capped at the national minimum wage. In contrast, workers in other sectors are eligible after 12 months of work, can receive up to five months of benefits, and are covered up to their contractual wage. Challenges also persist in ensuring effective access to collective bargaining, as domestic workers usually work behind closed doors in isolation, face difficulties in organizing and sometimes encounter persistent administrative obstacles in registering domestic workers’ unions. The participation of domestic workers’ organizations in forums for the formulation and monitoring of policies addressing contemporary forms of slavery has been progressively strengthened, without prejudice to the recognition that expanding and decentralizing such participation remains an ongoing challenge.

39. In addition, domestic servitude remains significantly underreported, in part because many workers do not recognize themselves as victims, are unable to report abuse due to isolation and restrictions on movement in private households or are unaware of their rights. Article 44 of Complementary Law No. 150/2015 establishes a “double visit” requirement for labour inspections in domestic work. This suggests that inspectors must first issue a warning and provide guidance before imposing sanctions during a subsequent inspection visit. In practice, however, this hinders timely and effective enforcement.

¹² See BRA 1/2025, available from <https://spcommreports.ohchr.org/Tmsearch/TMDocuments>.

40. Post-rescue assistance for domestic workers is especially challenging due to their lack of social ties, resources and access to healthcare, psychological support and housing after decades of isolation. Many victims, who are often older persons, require long-term institutional care, yet the country's social assistance system still lacks clear procedures to handle such complex cases. Furthermore, rescue operations reportedly often lack specialized medical and psychological services, resulting in insufficient documentation of victims' health conditions. The need to provide individually tailored, age- and gender-sensitive protection and support to domestic workers has been highlighted as crucial. Moreover, a systemic lack of compensation for damages resulting from work-related illnesses or injuries was also identified, including the absence of coverage for medical, therapeutic and medication expenses required to treat such injuries. Lastly, due to the contribution-based pension system and the informal nature of domestic work, most rescued domestic workers cannot access pensions.

E. Sex work

41. Voluntary prostitution by adults is not criminalized in Brazil. Certain practices associated with sexual exploitation, exploitation of vulnerabilities and other conduct covered under Brazilian legislation remain subject to legal accountability. The social and economic vulnerability of persons in this context is related mainly to structural inequalities, intersecting forms of discrimination, racism, social exclusion, power imbalances and insufficient access to decent work and income – factors that increase the risk of exploitation.

42. Sex workers do not have access to full labour protections and are vulnerable to violence, exploitation, abuse, coercion and other human rights abuses. Their working conditions are often precarious and unsafe. In 2002, the Ministry of Labour and Employment officially recognized sex work as a profession to be included in the Brazilian Classification of Occupations, but in law and practice, the rights and entitlements of sex workers are insufficiently recognized.

43. According to reports received, forced prostitution often takes place near large construction sites, for example around clean energy constructions and mining sites. Indigenous and other women migrate to such sites to work as cooks or domestic workers or in other jobs; once there, however, many are forced into prostitution. One specific allegation is that Indigenous women, including Yanomami women, along the border with the Bolivarian Republic of Venezuela are being exploited by illegal miners. Instances of children being exploited in such settings have also been reported.

44. Sex workers, including those who engage in this sector by choice, often experience discrimination in accessing healthcare, social services and pensions. Furthermore, many are said to face discrimination from law enforcement authorities and other public authorities. Their reports of exploitation or abuse are frequently not taken seriously and are left unaddressed by the police and by the Ministry of Labour and Employment.

V. Business and human rights

45. Brazil has been taking important steps to encourage companies to protect the rights of workers. A prominent example in this regard is the register of employers who have subjected workers to conditions analogous to slavery (also known as the “dirty list”) which was created originally by Ordinance No. 1.234/03 in 2003 and subsequently amended a number of times. This instrument has long been regarded as an example of innovative practice; it promotes transparency and strengthens accountability among businesses that engage in contemporary forms of slavery. Once placed on the “dirty list”, companies are barred from securing credit at public financial institutions and face restrictions imposed by private lenders and in some procurement processes, and their inclusion in the list increases their reputational damage. The consequences are aimed at encouraging companies to rectify their conduct and enhance labour rights protection.

46. In addition, under Interministerial Ordinance No. 18/2024, employers who assume legally binding commitments related to reparation of harm, remediation of irregularities and the adoption of preventive measures may be included in a separate registry of employers in the process of conduct adjustment,¹³ and not the “dirty list” itself. At the very minimum, they are required to assume two key financial obligations: (a) the payment to the federal Government of a financial contribution corresponding to at least 2 per cent of the employer’s gross revenue from the previous fiscal year, to be directed to supporting public policies for assisting workers rescued from conditions analogous to slavery or otherwise particularly vulnerable to such practices; and (b) the payment to each affected worker of compensation for individual moral damage of not less than 25,000 reais, with an additional increase of at least 2,500 reais for each 12-month period during which the worker remained subjected to conditions analogous to slavery. Conduct adjustment agreements concluded under this framework may also serve as a procedural reference for implementing due diligence measures aimed at preventing and addressing human and labour rights violations.

47. Furthermore, property or premises where victims of contemporary forms of slavery have been identified can be expropriated in accordance with article 243 of the Constitution. However, this provision has not yet been given effect through national legislation or a regulation. Separately, Brazilian law provides for the expropriation of rural property for agrarian reform purposes in cases of non-compliance with the social function of property, as set out in articles 184 and 186 of the Constitution. In this regard, some stakeholders indicated that the use of slave labour constitutes a violation of the social function of property, as it fails to meet the criteria established in article 186, in particular compliance with the provisions governing labour relations (criteria III) and exploitation that promotes the well-being of both owners and workers (criteria IV).

48. On this basis, such non-compliance could, in principle, justify the initiation of expropriation proceedings by the State, including through the National Institute for Colonization and Agrarian Reform. However, the Special Rapporteur was informed that this measure has been applied only exceptionally in practice. To date, only one case has been reported, in 2008, concerning Cabaceiras farm, located in the municipality of Marabá. In that case, compensation was paid to the property owner and, to date, there has been no case of expropriation without compensation pursuant to article 243 of the Constitution.

49. At the time of the visit, the National Congress was considering Bill No. 572/22, aimed at creating a national framework for human rights and business. The Special Rapporteur welcomes the bill and calls for its prompt adoption, including its provisions on mandatory human rights and environmental due diligence, in line with the Guiding Principles on Business and Human Rights. The Ministry of Human Rights and Citizenship was also developing a national action plan on business and human rights, to be issued through a decree. While welcoming this initiative, the Special Rapporteur notes concerns about the lengthy process. He therefore encourages the authorities to advance the development of the plan without further delay, ensuring meaningful engagement with all relevant stakeholders, including civil society organizations, and aligning it with international human rights standards.

50. In addition, the Special Rapporteur wishes to acknowledge multi-stakeholder initiatives to support human rights due diligence in Brazil. One example is the National Pact for the Eradication of Slave Labour signed by members of Brazilian civil society, workers’ organizations, businesses in various sectors, such as agriculture, the textile industry and construction, and the International Labour Organization, and launched in 2005.¹⁴ This represents a voluntary commitment to promote dignified labour conditions throughout supply chains. The signatories to the National Pact make use of the “dirty list” to identify businesses engaging in labour exploitation and call on them to modify their behaviour. The commitments made under the Pact include: cutting commercial ties with business who make use of slave

¹³ The registry of employers in the process of conduct adjustment is available at <https://www.gov.br/trabalho-e-emprego/pt-br/assuntos/inspecao-do-trabalho/areas-de-atuacao/combate-ao-trabalho-escravo-e-analogo-ao-de-escravo> (in Portuguese).

¹⁴ See https://www.ilo.org/sites/default/files/wcmsp5/groups/public/@dgreports/@ilo-washington/documents/genericdocument/wcms_189835.pdf.

labour; incorporating into contracts clauses to prevent malpractice; establishing mechanisms to track products; and promoting training and awareness-raising. While many stakeholders mentioned that the Pact has led to some improvements and increased business compliance, ensuring the meaningful participation of workers themselves and a broader, more diverse range of workers' organizations, particularly those closest to affected workers, is crucial.

51. There are also sector-specific initiatives, such as the national coffee industry pact, the National Pact for Decent Work in Rural Areas and a regional pact for the wine industry. These aim to promote social dialogue between businesses and other stakeholders with a view to protecting the rights of workers. However, there is scope to expand membership by businesses, and it would be beneficial to establish robust mechanisms to monitor the implementation of these pacts and to identify remaining gaps.

52. While these developments are encouraging, significant challenges remain. For example, the 2017 labour reform (Law No. 13.467), which amended over 200 provisions of the Labour Code, was aimed at strengthening workers' rights, reducing informality and expanding formal employment. However, many stakeholders report that these objectives have not been achieved in practice. In particular, the reform was said to have weakened collective bargaining by expanding the scope for individual negotiations between employees and employers and by introducing optional union contributions, disproportionately affecting vulnerable workers, especially in rural areas, where labour inspections are infrequent and workers' awareness about their rights tends to be limited. Also, despite the strong normative framework, there is no criminal liability for legal entities that exploit workers. Some stakeholders claimed that this has allowed perpetrators of contemporary forms of slavery to go unpunished.

53. Concerns were also raised regarding the Outsourcing Law (Law No. 13.429/2017), which allows both core and secondary activities to be outsourced. Many stakeholders noted that the current regime has, in effect, facilitated multilayered outsourcing arrangements that obscure business accountability and enable the shifting of liability for labour rights violations to outsourced companies, particularly by large businesses. It also has led to the rise of a practice known as *pejotização*, through which a worker is hired as a legal entity instead of a formal employee in order to avoid the application of labour rights and payment of labour costs. Currently, the legality of *pejotização* is being examined in the ordinary justice system, not the labour justice system. The Special Rapporteur is of the view that labour-related issues, including *pejotização*, should be assessed by the labour justice system, given its specialization.

VI. Protection of victims and prevention of contemporary forms of slavery

54. In Brazil, the protection of victims of contemporary forms of slavery is coordinated through the National Protocol for Assistance to Victims of Slave Labour, established in Ordinance No. 3.484/2021 of the Ministry of Human Rights and Citizenship. The Protocol reflects an understanding of "rescue" as a comprehensive process that aims to go beyond the physical removal of victims, to encompass the immediate restoration of labour and human rights and to ensure access to social protection. Once victims are identified, labour inspection authorities initiate procedures to secure unpaid wages and severance benefits, issue unemployment insurance payments and refer victims to support for access to documentation, healthcare and migration regularization, as well as to appropriate public and private service providers, including social services and civil society organizations, according to their needs. One example of the assistance provided is the unemployment insurance for rescued workers scheme under Law No. 7.998 of 1990, as amended, which entitles workers rescued from conditions analogous to slavery to receive three monthly unemployment insurance payments, each equivalent to the national minimum wage. The Special Rapporteur was informed that the Protocol has increased coordination among relevant entities and has enhanced rescue operations and the reintegration of victims into society in a way that preserves their dignity.

55. The Unified Social Assistance System plays a structuring role in post-rescue assistance to victims of contemporary forms of slavery through the coordinated provision of services, benefits and programmes. Social assistance services support families, the reconstruction of family and community ties, social reintegration, access to civil documentation, inclusion in the unified registry for social programmes, access to cash transfer programmes, food security, access to shelter and referral to other public policies. Social assistance services operate continuously throughout the territory of Brazil and contribute to the early identification of situations of vulnerability related to labour exploitation.

56. The National Protocol approach has been replicated in some states and municipalities in Brazil, such as São Paulo, which adopted a municipal protocol for assistance to persons subjected to and vulnerable to slave labour. The Special Rapporteur also met with authorities in the States of Pará, Maranhão and Minas Gerais, who explained how the Protocol works in practice at the state and municipal levels. Some states have also established funds dedicated to protecting victims of contemporary forms of slavery. Moreover, the Radar SIT dashboard, maintained by the Labour Inspection Secretariat, consolidates statistical data generated through labour inspections, including the number of inspections carried out and regarding workers reached, rescued and registered, classified by municipality and economic activity, as well as data on unemployment insurance forms issued and the amounts of severance payments, enabling year-by-year monitoring of trends since 1995. Obtaining accurate relevant information at the local and municipal level is essential in developing and implementing more effective actions against contemporary forms of slavery.

57. However, despite these robust arrangements, shortcomings have been recognized in various areas. Not all states and municipalities have fully adopted or operationalized the National Protocol for Assistance to Victims of Slave Labour, resulting in uneven levels of assistance and protection; the level depends on where victims are identified and rescued. Stakeholders further highlighted persistent fragmentation in service provision and insufficient coordination among actors, which in practice may lead to victims and survivors being referred repeatedly between services without continuity of care, and in some cases being lost in the system altogether. In addition, gaps remain in the availability of individually tailored services that are gender- and age-sensitive and culturally appropriate, including with regard to adequate access in multiple languages and inclusive support for persons with disabilities. Insufficient and unstable funding for service providers further constrains the effectiveness and sustainability of victim/survivor protection and reintegration efforts.

58. Furthermore, a strong public policy to secure the livelihoods of survivors is necessary. After being rescued, survivors are often not able to access alternative work, particularly in the formal sector. In this regard, the Special Rapporteur was encouraged to learn about a multi-stakeholder project entitled “Viva Pós Resgate” (Life after Rescue) implemented in the State of Bahia, where rescued workers participate actively in rebuilding their lives through sustainable farming, without the need to migrate or work under precarious conditions. He encourages other regions to implement similar fruitful initiatives that provide viable alternatives to labour exploitation.

59. In terms of wider social welfare and poverty reduction, the Bolsa Família cash transfer programme guarantees a minimum level of income for socioeconomically vulnerable families, with certain conditions attached, such as the enrolment of children in education. Similarly, the Benefício de Prestação Continuada programme provides benefits to people aged 65 years and above and persons with disabilities of any age who are unable to support themselves or be supported by the family. While these are well-intended measures, misconceptions persist that formal employment leads to ineligibility, pushing many into informal and precarious work. It is therefore crucial that governments communicate accurate information clearly and that a broad awareness-raising campaign be rolled out.

60. Civil society organizations have played a crucial and sustained role in preventing slave labour, especially in contexts where the State has failed to implement consistent policies or long-term prevention strategies. Through targeted initiatives, these organizations help reduce revictimization and limit the spread of exploitative practices. Two long-running efforts in Brazil are particularly notable. The “Slavery, Never Again!” programme, established by Repórter Brasil, has reached over 1.7 million people across more than 800 municipalities

since 2004 by training public sector professionals in high-risk areas. A campaign by the Pastoral Land Commission, launched in 1997 with the motto “Keep your eyes open so you do not become a slave”, focuses on prevention through awareness of workers’ rights, encourages the reporting of abuses and the provision of support for rescued individuals, and compiles data to advocate stronger public policies.

VII. Accountability and access to justice and a remedy

61. A key challenge relates to the ineffective implementation of the existing laws and policies. The federal prosecution service is responsible for initiating criminal prosecution and proceedings against perpetrators of contemporary forms of slavery. However, the rates of prosecution and conviction are low, leading to rampant impunity. Interlocutors noted that judicial proceedings are often lengthy and many convictions are quashed on appeal in practice. Even where convictions are achieved, penalties are said to be weak, with many perpetrators receiving suspended or minimal sentences and fines. In addition, given the complex value chains, there are major gaps in holding perpetrators of labour exploitation accountable, as only those directly involved in such practices are prosecuted.

62. Official statistics from the Internal Affairs Office of the Federal Police indicate that, with regard to police investigations concerning the offence of reducing a person to a condition analogous to slavery (Criminal Code, art. 149), inquiries carried out between 2024 and the time of writing took, on average, over a year. The Federal Police does not have consolidated data on the duration of judicial criminal proceedings for this offence.

63. While recognizing the significant efforts undertaken by labour inspectors, there is scope to further strengthen labour inspections, particularly in remote and rural areas, such as the Amazon region. There, labour and sexual exploitation are often intertwined with environmental crime, illegal land appropriation, corruption, legal and illegal mining or other extractive industries, deforestation and extensive cattle ranching. Many stakeholders highlighted that inspections in these areas face severe logistical, security and operational challenges, including limited State presence, difficult access, security risks and the absence of basic infrastructure. This requires complex, costly and intelligence-based planning and close inter-institutional coordination. Establishing accountability is especially difficult in the Amazon region, where the identification of those responsible for crimes and human rights abuses, including contemporary forms of slavery, remains inadequate.

64. While the Special Rapporteur welcomes the ongoing recruitment by the Government of 900 additional labour inspectors, not all of them are addressing contemporary forms of slavery. Therefore, further sustained investment is needed to equip inspection services with resources adapted to local realities, including appropriate means of transport (such as speedboats and other boats, helicopters and small aircraft) and technological tools for intelligence-led inspections, including digital data collection and analysis, remote sensing, and monitoring of online environments, so that inspections can be carried out safely and effectively.

65. Underreporting by victims of contemporary forms of slavery remains a significant concern; increased attention must be paid in that regard in order to enhance access to justice and remedies. The federal Government has established several reporting channels, including tools to report contemporary forms of slavery and child labour, such as the Sistema Ipê Trabalho Escravo,¹⁵ the Sistema Ipê Trabalho Infantil¹⁶ and the Disque 100 hotline. The Sistema Ipê Trabalho Escravo is an online platform designed to collect, centralize and process complaints related to slave labour and allows complaints to be directly received, triaged and preliminarily assessed by labour inspection authorities. This enables the prioritization of cases involving serious risks, violence or short-term economic activities. The platform is accessible in Portuguese, English, Spanish and French. In 2024 alone, more than 3,100 complaints were registered in the system.

¹⁵ See <https://ipe.sit.trabalho.gov.br/#/>.

¹⁶ See <https://ipetrabalho infantil.trabalho.gov.br/#/>.

66. While these platforms have contributed to targeted labour inspections, the timely identification of victims and the undertaking of rescue operations continue to face limitations. Persistent challenges include insufficient outreach to workers in remote, rural or closed settings, limited awareness among potential victims about their human and labour rights, and structural barriers that deter reporting due to fear of retaliation or lack of trust in authorities. The need for accessible, child-friendly, gender-sensitive and culturally sensitive reporting mechanisms in multiple languages has therefore been highlighted by several stakeholders. Improving data analysis and ensuring that reporting mechanisms are linked effectively to timely protection and follow-up measures remain essential to addressing underreporting and to ensuring accountability for instances of contemporary forms of slavery and related human rights violations.

67. Another concern identified relates to the lack of free legal assistance for victims. The Federal Public Defender's Office does not operate uniformly across the national territory, either due to limited resources or because the institution currently prioritizes cases of slave labour coordinated by the Special Mobile Inspection Group. Locally conducted rescue operations generally do not receive support from the Federal Public Defender's Office. Due to this gap, many victims/survivors of slave labour are unable to access justice, claim compensation or obtain protection from continued exploitation and abuse.

68. With regard to access to remedies, the Public Labour Prosecution Office can initiate public civil lawsuits to secure individual or collective damages. The regularization of working conditions, including compliance with health and safety standards, payment of outstanding wages and severance, and formalization of employment contracts can also be enforced through conduct adjustment agreements.

69. However, interlocutors stated that damages awarded by the labour courts are often low and not proportionate to the gravity of the human and labour rights violations suffered by victims. While the Public Labour Prosecution Office has traditionally played a leading role in the conclusion and monitoring of conduct adjustment agreements, Ordinance No. 18/2024 also empowers the Minister of Labour and Employment to conclude the specific agreement, raising concerns about the emergence of a two-tier system and possible political interference. Only the conclusion of a conduct adjustment agreement that fully complies with the requirements of Ordinance No. 18/2024 enables an employer's name to be transferred from the "dirty list" to the registry of employers in the process of adjustment of conduct noted above. Stakeholders expressed concern that such transfers may affect the transparency of the "dirty list" and could undermine its effectiveness, in particular its deterrent effect, and weaken accountability. In addition, the Special Rapporteur is concerned about the risk of political interference in the technical process aimed at combating slave labour. This could seriously jeopardize the effectiveness of the "dirty list" and the inspection system as a whole, which would represent a major setback regarding the elimination of contemporary forms of slavery in Brazil.

VIII. Conclusions

70. Brazil stands at a critical juncture, where advancing just and favourable conditions of work for all requires confronting deep-rooted structural inequalities shaped by the enduring legacies of the transatlantic slave trade and colonialism. Ensuring non-discrimination in access to decent work must be accompanied by targeted policies that address racial, social, gender and regional disparities, particularly those affecting people of African descent and Indigenous and Quilombola populations. In this context, effective land demarcation is not only a matter of legal recognition but also a fundamental step towards safeguarding the rights, livelihoods and cultural integrity of affected communities with a view to reducing their structural vulnerability to contemporary forms of slavery. In addition, decisive action is needed to halt environmental and other crimes, especially in the Amazon region, which continue to undermine both human rights and ecological sustainability.

71. There is an urgent need to strengthen the protection of victims and survivors of slave labour by ensuring access to justice and by holding perpetrators accountable, regardless of their socioeconomic or political standing. As a matter of priority, the Government should step up efforts to identify and rescue victims in remote areas and in private households. To this end, increasing funding, staffing and technological support for labour inspectors, especially in remote rural regions where exploitation is most common, would significantly improve victim identification and intervention.

72. Businesses and supply chains must be held accountable through stricter transparency requirements and due diligence obligations, and it must be ensured that forced labour is not hidden within agricultural, mining or manufacturing sectors. Expanding the “dirty list” could also help deter businesses from engaging in labour exploitation. Coordination between federal, state and local authorities must be improved to avoid bureaucratic delays and to ensure consistent enforcement across regions.

73. Furthermore, there is a need to strengthen victims’ access to comprehensive support services and to effective remedies, while also investing in their long-term reintegration. This should be complemented with the empowerment of survivors through access to education, decent work, land, social protection and overall poverty reduction. Their active and meaningful involvement in policy development and implementation in protection and reintegration is essential.

74. Lastly, the protection of human rights defenders, including anti-slavery activists, is pivotal. Their voices play a vital role in exposing abuses and promoting accountability and must be safeguarded through robust legal protections and enforcement mechanisms.

IX. Recommendations

A. Recommendations addressed to the Government of Brazil

International commitments and legal frameworks

75. The Special Rapporteur recommends that the Government ratify outstanding human rights and labour instruments, including the International Convention on the Protection of the Rights of All Migrant Workers and Members of Their Families and key ILO conventions, such as the Freedom of Association and Protection of the Right to Organise Convention, 1948 (No. 87), the Labour Inspection (Agriculture) Convention, 1969 (No. 129) and the Promotional Framework for Occupational Safety and Health Convention, 2006 (No. 187).

Adoption and amendment of national legislation and policy in alignment with international standards

76. The Special Rapporteur recommends that the Government:

- (a) Enact Bill No. 572/22 on business and human rights, including the provisions on mandatory human rights due diligence;
- (b) Finalize and adopt the national action plan on business and human rights;
- (c) Launch the third National Plan for the Eradication of Slave Labour;
- (d) Review existing legal frameworks, in particular by:
 - (i) Assessing the 2017 labour reform (Law No. 13.467/2017);
 - (ii) Addressing accountability gaps in the Outsourcing Law (Law No. 13.429/2017), including with regard to *pejotização*;
- (e) Ensure the enforcement of constitutional provisions, including with regard to the expropriation of properties linked to contemporary forms of slavery (art. 243).

Business and human rights

77. The Special Rapporteur recommends that the Government:

- (a) Strengthen accountability for contemporary forms of slavery by introducing and enforcing criminal liability for legal entities (including fines) and by ensuring accountability across entire value chains, including multinational companies;
- (b) Enhance transparency and deterrence tools, in particular by refraining from political interference in the technical sphere responsible for inspections aimed at identifying instances of contemporary forms of slavery, so as not to weaken the “dirty list” and the fight against slave labour.

Labour inspection and enforcement

78. The Special Rapporteur recommends that the Government:

- (a) Increase human, financial, technical, technological and security resources in the area of labour inspection and enforcement;
- (b) Expand inspection powers and proactive monitoring of high-risk sectors;
- (c) Increase inspections in remote and rural areas, for example the Amazon region, and in domestic settings;
- (d) Ensure institutional presence nationwide by establishing and operationalizing commissions to combat slave labour in all states.

Victim protection and access to justice

79. The Special Rapporteur recommends that the Government:

- (a) Ensure the accessibility, gender-responsiveness and age-sensitivity of reporting channels and their availability in multiple languages, including for migrant workers and persons in remote and isolated areas;
- (b) Ensure access by victims and survivors of contemporary forms of slavery to free legal assistance without discrimination;
- (c) Connect and engage with civil society actors experienced in victim support within State procedures and response frameworks;
- (d) Establish and effectively implement mechanisms for compulsory reparation for victims;
- (e) Enhance victim and survivor support services by taking the following steps:
 - (i) Ensure consistent implementation of the National Protocol for Assistance to Victims of Slave Labour;
 - (ii) Improve referral mechanisms and data system integration across authorities;
 - (iii) Provide tailored assistance, taking into account factors such as gender, age, disability, culture and language;
 - (iv) Increase funding for public defenders, civil society and worker organizations;
 - (v) Train public service professionals, particularly in the areas of education, health, social assistance and public security, on the identification of instances of contemporary forms of slavery and the provision of appropriate assistance and referrals for victims.

Prevention and socioeconomic measures

80. The Special Rapporteur recommends that the Government:

(a) Address the root causes of contemporary forms of slavery by taking the following steps:

- (i) Increase investment in poverty reduction, sustainable development, access to basic services and social protection;**
- (ii) Promote access to just and favourable conditions of work without discrimination at the community level;**
- (iii) Ensure that sectoral policies related to education, health, social assistance and public security include specific measures for the prevention of contemporary forms of slavery grounded in the protection of human rights;**

(b) Encourage formal employment by clarifying eligibility rules for social benefits and conducting awareness campaigns to dispel disincentives to formalization.

Exploitation of children

81. The Special Rapporteur recommends that the Government:

(a) Invest in access to quality and free education and in poverty reduction, particularly in rural areas, in order to prevent child labour, sexual exploitation and child marriage;

(b) Establish child-friendly reporting mechanisms;

(c) Enhance training for front-line professionals in the areas of child labour and the criminal and sexual exploitation of children;

(d) Raise the minimum age of marriage to 18, in line with the Convention on the Rights of the Child;

(e) Ensure that child protection services and custody councils at the municipal level are well staffed and resourced in order to address the exploitation of children more effectively;

(f) Establish a national, integrated and multisectoral system to register cases and generate data on the different types of violence against children, including child marriage, child labour and sexual exploitation.

People of African descent, Indigenous Peoples, Quilombola communities and other ethnic groups

82. The Special Rapporteur recommends that the Government:

(a) Address the enduring legacies of slavery and colonialism through a comprehensive reparatory justice approach, including strengthened measures to eliminate structural racial discrimination and reduce socioeconomic inequalities;

(b) Expedite the completion of the demarcation of land traditionally inhabited by Indigenous Peoples and Quilombola communities and, to this end, adopt a specific timeline;

(c) Establish a national body on Indigenous memory and truth to ensure that the voices of Indigenous Peoples are heard and historical injustices are addressed;

(d) Ensure the full, meaningful and effective participation of Indigenous Peoples and Quilombola communities in all decision-making processes affecting them, including with regard to obtaining free, prior and informed consent from Indigenous Peoples concerned in accordance with articles 10, 11 (2), 19, 28 (1), 29 and 32 (2) of the United Nations Declaration on the Rights of Indigenous Peoples;

(e) Prioritize the protection of traditionally occupied lands from extractive and agribusiness activities that undermine livelihoods, and support culturally appropriate, sustainable economic alternatives and community-based development in rural and marginalized areas;

(f) Ensure access to education, healthcare, water, sanitation, infrastructure and decent work in traditional territories, in order to prevent these populations from being pushed into contemporary forms of slavery;

(g) Expand and strengthen affirmative action and other special measures to improve access by people of African descent and Indigenous Peoples to education, decent work, essential services and public employment.

Migrant workers, asylum-seekers and refugees

83. The Special Rapporteur recommends that the Government:

(a) Ensure accessible, timely and affordable documentation procedures for migrants and refugees and, where necessary, engage with countries of origin in this regard;

(b) Guarantee equal access for migrants and refugees to decent work, justice, labour protections, healthcare, education, adequate housing and social services at the federal, state and municipal levels, taking language and cultural barriers into account;

(c) Introduce systematic human rights and intercultural training programmes for public servants, including at state and municipal levels, and for law enforcement officials;

(d) Strengthen cooperation and coordination with civil society organizations, migrant and refugee communities and workers' organizations providing social welfare and documentation support, while reaffirming the primary responsibility of the State for protection;

(e) Promote structured and regular dialogue with migrant communities at the state and municipal levels, including through the establishment of local migrant councils or consultative mechanisms in municipalities with significant migrant populations;

(f) Conduct a national survey on the situation of migrants and refugees in relation to contemporary forms of slavery and enhance cooperation with countries of origin in order to address data gaps and improve prevention and protection policies;

(g) Facilitate access to the formal labour market for migrants and refugees by, inter alia, reducing barriers to the recognition of foreign qualifications and lowering the costs and complexity of diploma and credential recognition processes;

(h) Strengthen protection mechanisms for migrants, asylum-seekers and refugees, including with regard to access to legal assistance, information in relevant languages, and safe and effective channels for reporting exploitation and abuse, irrespective of migration status.

Domestic workers

84. The Special Rapporteur recommends that the Government:

(a) Ensure full and non-discriminatory legal protection for all domestic workers, including day labourers, by extending core labour and social protection rights irrespective of the number of working days;

(b) Effectively implement Constitutional Amendment No. 72/2013 on occupational safety and health for domestic workers;

(c) Revise unemployment insurance eligibility criteria and benefit levels for domestic workers to ensure equal treatment with workers in other sectors;

(d) Remove administrative and procedural obstacles to register domestic workers' unions;

(e) Strengthen proactive and effective labour inspections in domestic settings, including private households, by addressing legal and procedural barriers that hinder timely enforcement;

(f) Guarantee comprehensive, long-term and individually tailored protection and support for survivors of domestic servitude, including access to physical and mental healthcare, social services, adequate housing, pensions, compensation and immediate financial assistance following rescue;

(g) Regulate the use of modern technology to recruit domestic workers and other platform workers and ensure labour protection for application-based domestic workers;

(h) Safeguard the rights of victims of domestic servitude, including those of Sônia Maria de Jesus, prioritize the rescue of Sônia Maria de Jesus without further delay and provide her with family reunification and access to rehabilitation, effective remedies and reparations;

(i) Ensure the meaningful participation of domestic workers' organizations in all decisions affecting such workers, including in policymaking processes related to domestic work, labour inspection and protection measures.

Sex work

85. The Special Rapporteur recommends that the Government:

(a) Guarantee equal labour protection and other rights through a regulation and effective implementation thereof;

(b) Address ongoing discrimination and stigmatization experienced by sex workers by providing training for front-line public authorities and by raising awareness among the general public.

Environmental protection

86. The Special Rapporteur recommends that the Government:

(a) Adopt laws and policy that mandate both environmental and human rights due diligence among businesses;

(b) Ensure closer cooperation between environmental and labour inspection services;

(c) Strengthen State oversight and accountability mechanisms in remote areas, particularly in the Amazon region, by monitoring the use of non-regularized land, preventing land-grabbing and preventing deforestation, mining and other extractive industries that negatively impact the environment and the human rights of the local population, and hold businesses and other perpetrators accountable.

B. Recommendations addressed to businesses

87. The Special Rapporteur recommends that businesses:

(a) Protect the rights of all workers without discrimination;

(b) Implement human rights and environmental due diligence in line with the Guiding Principles on Business and Human Rights;

(c) Establish effective and impartial grievance mechanisms to address labour rights violations and other negative effects on human rights;

(d) Pay appropriate compensation and other forms of reparation to the victims of contemporary forms of slavery;

(e) **Respect the work of civil society and workers' organizations in promoting more effective prevention and protection and proactively cooperate with them;**

(f) **Proactively recruit workers from historically disadvantaged populations, including people of African descent, Indigenous Peoples, Quilombola communities and migrants;**

(g) **Refrain from conducting business activities in territories traditionally protected, used and occupied by Indigenous Peoples and Quilombola communities, unless free, prior and informed consent has been obtained in accordance with international standards.**
